

- RAG Learning

2.3 The Presidency

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

The President is simultaneously **head of state and head of government**, separately elected, serving a fixed four-year term limited to two by the Twenty-Second Amendment. The recurring exam question is whether the office has become "imperial" — and the best answers recognise that the evidence points in opposite directions depending on the policy area.

1. Formal (constitutional) powers

Power	Detail	Check on it
Veto	Refuse assent to legislation; also the <i>pocket veto</i> if Congress adjourns within ten days	Override by two-thirds of both chambers — rarely achieved
Commander-in-Chief	Directs the armed forces	Only <i>Congress</i> may declare war; the War Powers Resolution 1973
Appointments	Nominates cabinet secretaries, ambassadors and federal judges including Supreme Court justices	Senate confirmation by simple majority
Treaties	Negotiates treaties with foreign powers	Senate ratification by two-thirds
Pardon	Pardons and reprieves for <i>federal</i> offences	Does not extend to state offences or to impeachment

Recommend legislation	State of the Union address; proposes a budget	Congress need not act on any of it
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Exam Tip: Neustadt's key insight: the formal powers are **largely negative**. The veto lets a President *prevent* outcomes; almost nothing in Article II lets them *produce* one. This is why constitutional authority alone is a poor predictor of presidential success — and why "the power of the presidency is the power to persuade".

2. Informal powers

- **Executive orders** — directives to the federal executive branch with the force of law, requiring no congressional approval, resting on constitutional or statutory authority.
- **Executive agreements** — international agreements concluded without Senate ratification.
- **Signing statements** — statements issued on signing a bill indicating how the President interprets or intends to enforce it.
- **Direction of agency enforcement priorities** — deciding what the executive branch actually pursues.
- **The bully pulpit** — using the visibility of the office to shape public opinion and pressure Congress.
- **Party leadership** and the electoral mandate.

The executive order trade-off

Why presidents use them	Why they are fragile
Unilateral — no negotiation, no concessions, immediate effect	A successor can revoke them with a stroke of the pen
The only route available under gridlock or divided government	Courts can strike them down for exceeding delegated authority

Broad statutory delegations give wide discretion in immigration, environment and trade	Congress can legislate to override (subject to veto)
Demonstrates delivery on campaign commitments	Cannot appropriate money — only Congress can

Governing by executive order therefore produces policy that **oscillates with each administration rather than settling** — visible in immigration (DACA), environmental standards and student debt relief.

3. The Executive Office of the President (EXOP)

Created in 1939 after the Brownlow Committee concluded that "the President needs help".

- **White House Office** — Chief of Staff and the President's closest political and communications advisers.
- **National Security Council** — coordinates defence, intelligence and foreign policy.
- **Office of Management and Budget** — prepares the President's budget and reviews agency regulations and legislative proposals.

EXOP staff are appointed by the President and mostly require **no Senate confirmation**, so they are personally loyal. Power has shifted markedly from the cabinet to EXOP — the National Security Adviser may matter more than the Secretary of State. The criticism is that this insulates the President within a circle of loyalists with no independent standing, no accountability to Congress, and little incentive to offer unwelcome advice.

4. The cabinet

US cabinet secretaries are **individually appointed advisers** to a President in whom all executive power is constitutionally vested. They are not a collective decision-making body, do not sit in Congress, cannot outvote the President and cannot remove them.

Exam Tip: This is the sharpest contrast with the UK, where the cabinet is a collective body of parliamentarians whose withdrawal of support ends a premiership — Thatcher in 1990, Johnson in 2022. **No US cabinet has ever removed a President.** Use this whenever you compare the two executives.

5. Foreign policy and war powers

- The Constitution splits war powers: the President is Commander-in-Chief, but **only Congress may declare war** — and it has not done so since 1942, despite sustained military action in Korea, Vietnam, Iraq and Afghanistan.
- The **War Powers Resolution 1973**, passed over Nixon's veto, requires notification within 48 hours of deployment and withdrawal within 60 days absent congressional authorisation.
- **It has proved largely ineffective.** Presidents have disputed its constitutionality and acted without explicit authorisation; Congress has proved politically unwilling to cut off funding for deployed troops.
- Presidents increasingly prefer **executive agreements** to treaties, avoiding the two-thirds Senate threshold — at the cost of permanence, as the abandonment of the Iran nuclear agreement and the Paris accord showed.

6. The imperial presidency debate

Imperial presidency — Arthur Schlesinger Jr's term (1973, in the context of Vietnam and Watergate) for a presidency that has accumulated power beyond constitutional limits, particularly over war, secrecy and unilateral action, escaping effective congressional check.

Evidence for

- Sustained military action without declarations of war since 1942.
- Expanding use of executive orders, agreements and signing statements.
- Claims of executive privilege and extensive surveillance powers.

- Growth of EXOP as an unaccountable parallel executive.
- Congressional delegation of authority over tariffs, emergencies and regulation.

Evidence against — the "imperilled presidency"

- Presidents routinely fail to pass central legislative priorities — Clinton on health reform, Trump on ACA repeal.
- The President's party almost always loses seats at the midterms, usually ending the legislative programme.
- Executive orders are reversed by successors and struck down by courts — *Youngstown* (1952) invalidated Truman's steel seizure; rulings struck down elements of the travel ban and student loan forgiveness.
- Three presidents have been impeached; *United States v Nixon* (1974) rejected an executive privilege claim.
- The two-term limit; federalism and an unresponsive bureaucracy constrain implementation.

Exam Tip: The most defensible conclusion is **domain-specific**: the imperial thesis fits *foreign policy and national security*, where secrecy, speed and congressional deference give presidents wide latitude — and fits *domestic policy* poorly, where appropriations, confirmations and the filibuster impose real constraint. "It depends which policy area" is a far stronger answer than picking a side.

7. Why presidential power varies

Factor	Effect
Party control of Congress	The dominant variable. Unified government enables legislation; divided government mostly prevents it
Honeymoon period	Maximum authority in the first months; major achievements are heavily front-loaded

Midterm losses	Lower turnout favours the motivated opposition; usually costs the President a chamber
Lame duck status	Authority drains as a term ends; reliance shifts to executive action, pardons and foreign policy
Approval ratings	Legislators support a popular President and distance themselves from an unpopular one
Events	Crisis can enhance authority (9/11) or destroy it

The formal powers are identical throughout. What changes is **political capital** — which is Neustadt's central argument.

Why the bully pulpit works less well now

Neustadt's model assumed persuadable legislators. Polarisation has sharply reduced their number: a President's public appeals now mobilise their own base and harden the opposition, so the bully pulpit increasingly **polarises rather than persuades**.

Key terms

Term	Definition
Executive order	A presidential directive to the executive branch with the force of law
Executive agreement	An international agreement concluded without Senate ratification
Signing statement	A statement on signing a bill indicating the President's interpretation or intended enforcement
Executive privilege	The claimed right to withhold information from Congress and the courts
Bully pulpit	Using the visibility of the office to shape public opinion

EXOP	Executive Office of the President — the institutional support structure around the presidency
Imperial presidency	Schlesinger's thesis that presidential power has escaped constitutional limits
Imperilled presidency	The counter-thesis that presidents are heavily constrained and promise more than they can deliver
Lame duck	A President whose authority is draining as their term ends
Coattails	A popular presidential candidate helping their party's congressional candidates win

Essential examples

- **Youngstown (1952)** — Truman's steel seizure invalidated; limits on inherent executive power.
- **United States v Nixon (1974)** — executive privilege rejected.
- **War Powers Resolution 1973** — passed over a veto; largely unenforced.
- **DACA (2012)** — executive action after the DREAM Act failed in Congress; litigated ever since.
- **Iran nuclear agreement / Paris accord** — executive agreements abandoned by a successor.
- **ACA repeal failure (2017)** — a President defeated under unified government.
- **Trump impeachments (2019, 2021)** — House impeachment, no Senate conviction.